

REFERENCES & LEGAL SCHOLARSHIP · 3 MAY 2001

The new economic regulations (NRE)

TYPE

DATE

Reference text

3 May 2001

SUMMARY SHEET

The competition part of the loi NRE bill

Overview: Presentation of the “regulation of competition” part of the bill on new economic regulations (loi NRE), gathered as a reference document.

Key points

The text sets out the objectives of the loi NRE bill in the field of competition, thirteen years after the ordinance of 1 December 1986: to strengthen the fight against anti-competitive practices, to adapt merger control and to “clean up commercial practices” between suppliers and distributors. It announces the creation of a commercial practices commission, a punitive component defining abuses more clearly — including abuse of economic dependence — and the possibility for the minister to bring a case before the court, even in the absence of the victim, to put an end to the practices and penalise the disturbance to public economic order.

Significance

A contextual document: the NRE reform concerns the same concepts — abuse of economic dependence, imbalance in commercial relations — as those invoked in the Collorafi case.

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Source: bernardcollorafi.org/en/documents/reference-new-economic-regulations-bill-nre-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.